

CONSTITUTIONAL FRAMEWORK

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HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

- ✓ ü The British came to India in 1600 AD as traders in the form of East India Company.
- ✓ ü East India Company was also known as East India Trading Company **or** English East India Company.
- ✓ ü The East India Company was founded in the year 1600 for persuading the trade with East Indies (South Asia and South East Asia).
- ✓ ü But the East India Company traded mainly in the Indian subcontinent and China.
- ✓ ü The East India Company has exclusive rights to trade in India.
- ✓ ü In the year 1765 the East India Company obtained “Diwani” (Rights over revenue and civil justice) of Bengal, Bihar and Orissa.
- ✓ ü In the year 1858 after the Sepoy mutiny, British crown assumed direct responsibility for the governance of India.
- ✓ ü This rule continued up to August 15, 1947. (India got independence).

THE COMPANY RULE (1773-1858): AND THE REGULATING ACT OF 1773

- ✓ ü This was the first step taken by British Government to control and regulate the affairs of East India Company in India.
- ✓ ü The political and administrative functions of the company were recognized for the first time.
- ✓ ü It laid the foundation of central administration in India.

FEATURES (CHARACTERISTICS) OF 1773 ACT:

- ✓ ü The Governor of Bengal was designated as the Governor-General of Bengal and the Executive council of the 4 members was created to assist the Governor-General.
- ✓ ü The **first Governor-General of Bengal was Lord Warren Hastings.**
- ✓ ü The 1773 act made the Governors of Bombay and Madras presidencies subordinate to the Governor-General of Bengal.
- ✓ ü The act provided for the establishment of Supreme Court at Calcutta in the year 1774.
- ✓ ü The Supreme Court comprised of a Chief Justice and 3 other judges.
- ✓ ü This act prohibited the servants of the company from engaging in any private trade or accepting presentations (gifts) or bribes from the natives (local people).
- ✓ ü The 1773 act strengthened the control of British government over the company by requiring the court the Directors to report on its revenue, civil and military affairs in India.

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- ✓ ü The 1781 act of Settlement – passed by the British parliament to rectify the defects of 1773 Act.

PITTS INDIA ACT OF 1784:

- ✓ ü The Pitts India act distinguished between commercial and political functions of the company.
- ✓ ü The Court of Directors entrusted with the responsibility to manage commercial affairs of the company.
- ✓ ü The Board of control was entrusted with the responsibility of political affairs.
- ✓ ü Thus the Pitts India act established the dual (double) government.
- ✓ ü The company territories in India were for the first time called British possessions in India.

CHARTER ACT OF 1833

- ✓ ü This is the final step towards centralization of power in India.

What is centralization?

This is the concentration of power in single authority.

- ✓ ü The Governor-General of Bengal was made the Governor-General of India.
- ✓ ü The **first Governor-General of India was Lord William Bentinck.**
- ✓ ü The laws that were made prior to 1833 were called regulation.
- ✓ ü The laws that were made under 1833 charter were called Acts.
- ✓ ü The East India Company purely became the administrative body.
- ✓ ü Commercial body> Administrative body.
- ✓ ü This act provided for the company's territories in India were held by it in trust for His Majesty, his heirs and successors.
- ✓ ü The superintendence, direction and control of whole civil and military government of all the British territories and revenues in India was expressly vested in 'The Governor General of India in Council'.
- ✓ ü For the first time the Governor-General's government was known as the Government of India.
- ✓ ü The council was known as 'Indian Council'.
- ✓ ü The council was enlarged for legislative work by the addition of a Law member in addition to the existing three.
- ✓ ü This act attempted to introduce a system of open competition for selection of civil servants. (This is an attempt only; open competition system was introduced later).

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- ✓ ü Indians were not debarred from holding any place, office and employment under the company, but negated because of the opposition from the court of directors.

CHARTER ACT OF 1853:

- ✓ ü This was the last charter act passed by the British Parliament between 1793 and 1853.
- ✓ ü This act created the Legislative council.
- ✓ ü The legislative council functioned as a mini Parliament.
- ✓ ü The **Charter Act of 1853 introduced Open competition system** of selection and recruitment of civil servants.
- ✓ ü This was also open to Indians. (Indians were permitted to take part in the competitive examination).
- ✓ ü Accordingly Macaulay Committee (Committee on the Indian civil services) was appointed in the year 1854.
- ✓ ü Satyendra Nath Tagore was the first Indian to join the civil services.

THE CROWN RULE (1858 – 1947)

THE GOVERNMENT OF INDIA ACT 1858

- ✓ This came into being after the Sepoy Mutiny of 1857.

- Regarding the Sepoy Mutiny we learn more during Indian History discussion.

- ✓ ü This act is also known as the Act for good government in India.
- ✓ ü This is the first statute enacted by the Parliament for the governance of India under the direct rule of the British government.
- ✓ ü The GOI Act abolished the East India Company.
- ✓ ü The British crown assumed sovereignty over India from the East India Company.
- ✓ ü The designation of Governor-General of India was changed to the Viceroy of India.
- ✓ ü The **last Governor-General of India** was Lord Canning.
- ✓ ü The **first Viceroy of India** was Lord Canning.
- ✓ ü The GOI act abolished the Board of Control and Court of Directors.
- ✓ ü A new position called Secretary of State for India was created and the powers of the crown were

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exercised by the Secretary of State for India.

- ✓ ü The Secretary of state for India is a member of Cabinet and is responsible to the British Parliament.
- ✓ ü The Secretary of state for India was assisted by a council called 'Council of India' that contained 15 members.
- ✓ ü The Council of India was composed of exclusively of people from England.
- ✓ ü The secretary of state of India who was responsible to the British Parliament governed India through the Governor-General, assisted by an executive council which consisted of higher officials of the government.
- ✓ ü The administration of the country was unitary and rigidly centralized through 1858 Act.
- ✓ ü The provincial governments though existing headed by a Governor were mere the agents of the Government of India and functioned under the direct control of the Governor-General.
- ✓ ü There was no separation of functions. The legislative, executive, civil and military authority was vested in Governor-General in council of India who was responsible to the secretary of state for India.
- ✓ ü The control of the secretary of state of India over the Indian administration was absolute (complete, total).
- ✓ ü The machinery of the administration was totally unconcerned about the public opinion.

INDIAN COUNCILS ACT OF 1861:

- ✓ ü This act introduced a grain of popular element by including some non-official members in the executive council while transacting legislative business like legislative council.
- ✓ ü The Viceroy of India would nominate Indians to the legislative council.
- ✓ ü The functions of nominated members were confined exclusively to the consideration of the legislative proposals placed before it by the Governor-General (Viceroy).
- ✓ ü Even in the provinces for initiating legislations the prior sanction of the Governor-General (Viceroy) was necessary.
- ✓ ü In the year 1862 Lord Canning (first Viceroy of India) nominated Raja of Benaras, the Maharaja of Patiala and Sir Dinakar Rao to the legislative council.
- ✓ ü This act restored the powers of Bombay and Bengal presidencies.
- ✓ ü The Legislative Council for Bengal was created in the year 1862.
- ✓ ü The Legislative council for NWFP (North West Frontier Province) was created in the year 1866.

NWFP is in present day Pakistan and the name is changed to “**Khyber-Pakhtoonkhwa**”.

- ✓ ü The Legislative Council for Punjab was created in the year 1897.
- ✓ ü This act gave recognition to the portfolio system. (Portfolio system means placing each member in charge of a specific department).
- ✓ ü **Lord Canning introduced Portfolio system in the year 1859.**
- ✓ ü This act also empowered the Viceroy to issue ordinances.
- ✓ ü What is **Ordinance**? We learn during the discussion of the President of India.

1892 ACT: (THE INDIAN COUNCILS ACT)

- ✓ ü This act gave the legislative councils the power of discussing the budget and addressing questions to the executive.
- ✓ ü This act also provided for the nomination of some non-official members to the legislative councils by the Viceroy.

Indian Councils ACT of 1909 (MORLEY – MINTO REFORMS):

- ✓ ü Minto was the then Viceroy.
- ✓ ü Morley was the then Secretary of State.
- ✓ ü This act increased the size of legislative councils by including elected non-official members.
- ✓ ü An element of election was introduced at the central legislative council but the official majority was maintained.
- ✓ ü The members of the legislative council were allowed to ask supplementary questions.
- ✓ ü The members were allowed to move the resolutions on budget or on any matter of public interest except subjects like armed forces, Foreign affairs and Indian states.
- ✓ ü This act provided the association of Indians with executive council of the viceroy and the Governor.
- ✓ ü The **first Indian to join the Viceroys Executive council** was Satyendra Prasad Sinha.
- ✓ ü The 1909 act introduced a system of communal representation for Muslims by accepting the concept of ‘**Separate Electorate**’.
- ✓ ü Under the ‘Separate Electorate’ the Muslim members were to be elected only by Muslim voters.

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- ✓ ü For the 1st time the seeds of separatism were sown.
- ✓ ü The 1909 act legalized communalism.
- ✓ ü Minto was regarded as the “**Father of Communal Electorate**”.
- ✓ ü The Minto-Morley reforms did not aim at establishing a parliamentary system of the government.
- ✓ ü The final decision on all matters was retained in the hands of the irresponsible executive.

THE GOVERNMENT OF INDIA ACT, 1919

- ✓ ü This act came into picture when the Indian National Congress became very active during the 1st World war and launched the ‘Home Rule’ movement.
- ✓ ü This is also called Montague – Chelmsford reforms.
- ✓ ü Chelmsford was the then Viceroy.
- ✓ ü Montague was the then Secretary of state.
- ✓ ü On August 20, 1917 the British Government made a declaration that the policy of His Majesty’s Government is that of increasing association of Indians in every branch of administration and the gradual development of self-governing of institutions with a view to progressive realization of responsible government in British India as an integral part of the British empire.
- ✓ ü Montagu-Chelmsford were entrusted with the responsibility of formulating proposals for the said policy and the GOI Act, 1919 gave a formal shape to the same.
- ✓ ü The report of Montague-Chelmsford led to the enactment of GOI of 1919.
- ✓ ü **The GOI Act 1919 introduced diarchy or dual government.**
- ✓ ü The **diarchy was introduced at the provinces** and not at the centre.
- ✓ ü This act demarcated the central and provincial subjects.
- ✓ ü The provincial subjects were further divided into transferred subjects and reserved subjects.
- ✓ ü Transferred subjects are those subjects that are administered by the Governor with the aid of ministers and responsible to the Legislative Council in which the proportion of elected members was raised to 70 percent.
- ✓ ü Hence, the foundation of responsible government was introduced in the narrow sphere in the form of transferred subjects.
- ✓ ü The reserved subjects on the other hand were to be administered by the Governor and his executive council without any responsibility to the Legislature.
- ✓ ü The source of revenue was also divided into 2 categories, so that the provinces could run the administration with the aid of revenue raised by the provinces by themselves.

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- ✓ ü Provincial budget was separated from the Central budget.
- ✓ ü The control of the Governor-General over provinces was retained by empowering the Governor to reserve the bill for the consideration of the Governor-General.
- ✓ ü Through the GOI Act of 1919 bicameralism (two houses i.e. Upper and Lower House) was introduced at the centre.
- ✓ ü The Upper House was called Council of state composed of 60 members of whom 34 were elected.
- ✓ ü The lower House was called Legislative Assembly composed of 144 members of whom 104 were elected.
- ✓ ü The powers of both the Upper and Lower Houses were equal except that the power to vote supply (budget) was given only to the Lower House.
- ✓ ü The concept of elections was introduced.
- ✓ ü The Indian Legislative council consists of the Upper House (Council of State) and the Lower house (Legislative Assembly).
- ✓ ü The majority of the members from both the houses are elected directly.
- ✓ ü The act of 1919 extended communal representation for Sikhs, Indian Christians, Europeans and Anglo-Indians. (**Remember** the 1909 act introduced communal representation only for Muslims and not for all communities). (These are the questions that are **asked in the examination**, read carefully).
- ✓ ü This act provided for the establishment of Public Service Commission.
- ✓ ü Accordingly the Public Service Commission was set up for recruiting Civil Servants.
- ✓ ü The act of 1919 also provided for the separation of provincial budget from the central Budget. (Province means a smaller area, just like a present day state. Today we have 2 budgets in the country, central and state budgets, this started with the 1919 Act and even after the commencement of the Constitution we continued with the same).
- ✓ ü The 1919 reforms failed to fulfill the aspirations of the people in India and this led to “Swaraj” or “Self-government” agitation under the leadership of Mahatma Gandhi.
- ✓ ü In the year 1927 a statutory commission was appointed under the chairmanship of Simon to inquire into and report on the working of the 1919 Act.

SIMON COMMISSION:

- ✓ ü The Simon Commission was appointed by the British Government in November 1927.
- ✓ ü This was a 7 member Commission.
- ✓ ü The Chairman of the Commission was Sir John Simon.
- ✓ ü The purpose of the commission was to report on the condition of India under the new constitution (GOI

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1919).

- ✓ ü All the members of the committee were British.
- ✓ ü Hence all the parties boycotted the Commission.
- ✓ ü The Simon Commission submitted the report in the year 1930.
- ✓ ü The Simon Commission recommended for the abolition of diarchy.
- ✓ ü This commission also recommended for the continuation of communal electorate.
- ✓ ü The British government convened three round table conferences to consider the proposals of Simon Commission.
- ✓ ü The conferences to be attended by the representatives of British Government, British India and Indian princely states. (Regarding the **round table conferences** we learn more during the study of National Movement).
- ✓ ü The three rounds table conferences held between 1930 and 1932.
- ✓ ü **Mahatma Gandhi attended the second round table conference only.**
- ✓ ü On the basis of these discussions a white paper on constitutional reforms was prepared and the same was submitted to the Parliament.
- ✓ ü The recommendations were incorporated in the GOI Act of 1935.

COMMUNAL AWARD OF 1932:

- ✓ ü On August 4, 1932 the communal award was announced by Ramsay MacDonald (The then British Prime Minister).
- ✓ ü This is meant for providing extending separate electorate to Scheduled Castes.
- ✓ ü In fact the concept of separate electorate for depressed classes was raised by Dr. B.R.Ambedkar.
- ✓ ü The proposal was accepted by the British and announced the Communal award.
- ✓ ü Gandhi opposed this on the grounds that this proposal would disintegrate the Hindu society.
- ✓ ü Mahatma Gandhi began indefinite hunger strike in Yeravada jail (Pune, Maharashtra) against the separate electorate for Scheduled Castes.

POONA PACT OF 1932:

- ✓ ü As Mahatma Gandhi went on to hunger strike Dr Ambedkar was under tremendous pressure to save the life Gandhi.

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- ✓ ü Hence Dr. Ambedkar accepted for an agreement.
- ✓ ü This is an agreement between the Dalits (Then called depressed classes) of India led by Dr. B.R.Ambedkar and the upper caste Hindus of India.
- ✓ ü This took place on September 24, 1932 at Yeravada jail.
- ✓ ü Under Poona pact of 1932 there shall be seats reserved for the depressed classes out of general electoral seats in the provincial legislature.

GOVERNMENT OF INDIA ACT OF 1935:

- ✓ ü The GOI Act 1935 prescribed a Federation.
- ✓ ü The GOI act 1935 divided the powers into
 - ✓ Federal List (59)
 - ✓ Provincial List (54)
 - ✓ Concurrent List (36)
- ✓ ü The residuary powers were vested with the Viceroy.
- ✓ ü The GOI act of 1935 **abolished the diarchy** in provinces.
- ✓ ü The GOI act of 1935 **provided the diarchy** at the centre. (This did not come into operation).
- ✓ ü The responsible government was introduced in provinces. The Executive authority of the province was also exercised by the Governor on behalf of the crown and not as a subordinate of the Governor-General.
- ✓ ü The GOI act of 1935 introduced bicameralism (2 house, Upper and lower) in 6 out of 11 provinces. This was Legislative Assembly and the Legislative Council.
- ✓ ü In the rest of the provinces the legislature was unicameral.
- ✓ ü This act extended separate electorate for depressed classes (SC's), Women and labor.
- ✓ ü This act extended the **franchise** (Right to vote). With this 10% of the population got the voting right.
- ✓ ü The GOI 1935 granted limited franchise on the basis of tax, property and education.
- ✓ ü The GOI act of 1935 provided for the establishment of Reserve Bank of India (RBI) in the year 1935.

Establishment of RBI was recommended by **Hilton-Young Commission** in the year 1926.

The RBI in the year 1935 was set up at Calcutta (Kolkata).

In the year 1937 RBI was shifted to Bombay (Mumbai).

- ✓ ü The GOI act of 1935 provided for the establishment of Provincial and Joint Public Service Commission.
- ✓ ü The GOI act also provided for the establishment of Federal Court.
- ✓ ü The Federal Court was set up in the year 1937 in Delhi.
- ✓ ü **The seat of the Federal court was the Chamber of Princes in the Parliament building in Delhi.**
- ✓ ü The first Chief Justice of the Federal Court was Maurice Gwyer.
- ✓ ü (**Note:** The present Supreme Court was established on January 28, 1950).

INDIAN INDEPENDENCE ACT OF 1947:

- ✓ ü On February 20, 1947 the Prime Minister of England Sir Clement Atlee declared that the British rule in India would end by June 30, 1948.
- ✓ ü The Muslim League demanded for the partition.
- ✓ ü On June 3, 1947 the government announced that the constitution is not applicable to unwilling parts of the nation.
- ✓ ü Lord Mount Batten (then Viceroy) put forth the partition plan on the same day. It is called Mountbatten plan. (This is also called June 3 plan).
- ✓ ü This plan was accepted by both congress and Muslim league.
- ✓ ü The Indian Independence Act of 1947 ended the British rule and declared India as an independent and sovereign state from August 15, 1947.
- ✓ ü This act provided for the partition of the country into India and Pakistan.
- ✓ ü The office of Viceroy was abolished and provided for the Governor-General for each dominion (India and Pakistan) appointed by the king.
- ✓ ü This act also empowered the constituent assemblies to frame and adopt any constitution.
- ✓ ü The Central legislature of India composed of the legislative assembly and the council of states ceased to exist on August 14, 1947.
- ✓ ü The Indian Independence Act granted freedom to the princely states either to join India or Pakistan or to remain independent.

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- ✓ ü The civil servants were allowed to entitle all the benefits.
- ✓ ü Lord Mountbatten became the first Governor-General of independent India.
- ✓ ü Jawaharlal Nehru was sworn in as the first Prime Minister of India by Lord Mount Batten.
- ✓ ü Muhammad Ali Jinnah became the first Governor-General of Pakistan.

Making of the Constitution

Years:

- 1922 – Mahatma Gandhi's demand
- 1928 – Nehru Report
- 1934 – M N Roy demand for Constituent Assembly
- 1939 – World War II
- 1940 – August offer
- 1942 – Cripps Mission
- 1942 – Quit India Movement
- 1945 – World War II (came to end)
- 1945 – Simla Conference
- 1946 – Cabinet Mission Plan
- 1946 – Constituent Assembly (Formation and first meeting)
- 1947 – Lord Mountbatten replaced Lord Wavell as Viceroy of India
- 1947 – June 3rd plan or Mountbatten Plan
- 1947 – Indian Independence Act was passed in the British parliament
- 1947 – Partition
- 1947 – Independence to Indian and Pakistan
- 1948 – Draft of Indian Constitution introduced
- 1949 – Constitution was adopted
- 1950 – Constitution came into force

Now start reading:

- ✓ ü 1922 - Mahatma Gandhi put forward the demand that India's political destiny should be determined by the Indians themselves.

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- ✓ ü May 17, 1927 - At Bombay session Motilal Nehru moved a resolution calling up on the Congress working committee to frame a Constitution for India.
- ✓ ü May 19, 1928 – In all party conference a committee was set up under the Chairmanship of Motilal Nehru to determine the principles of the Constitution of India.
- ✓ ü Report was submitted on August 10, 1928 and was called **Nehru Report**.
- ✓ ü This was the 1st attempt by Indians to frame a full-fledged Constitution for India.
- ✓ ü **MN Roy** in the year **1934** put forward the idea of **Constituent Assembly** for India **for the first time**.
- ✓ ü In the year 1935, the Indian National Congress for the first time officially demanded for the CONSTITUENT ASSEMBLY.
- ✓ ü **August offer**: The demand for the **CONSTITUENT ASSEMBLY** was for the first time and authoritatively conceded by the British Government in the year **1940** through **August Offer**.
- ✓ ü 1940 - The coalition government in England recognized the principle that the Indians should themselves frame a new Constitution.
- ✓ ü 1942: **Cripps mission**: Sir Stafford Cripps(Cabinet Minister) came to India with a proposal of framing of Independent Constitution of India to be adopted after **World War II** provided that the 2 major political parties INC and the Muslim League could come to an agreement.
- ✓ ü The Muslim League rejected the same on the demand that India to be divided into 2 autonomous states on communal lines with 2 separate CONSTITUENT ASSEMBLYs.
- ✓ ü Hence political parties could not come to an agreement.
- ✓ ü This was followed by **Quit India Movement** in August 1942.
- ✓ ü After the World War II, the new labor party government came to the power in England.
- ✓ ü Simla Conference was held in the year 1945 at the instance of viceroy, Lord Wavell.

SIMLA CONFERENCE:

The Simla Conference of 1945 was arranged by Lord Archibald Wavell and the major political parties in India.

This was convened to agree up on the Wavell plan for Indian self Government to provide separate representation to Muslims.

The talks failed

- ✓ ü 1946 - **Cabinet Mission plan** (Lord Pethick Lawrence, Sir Stafford Cripps and A V Alexander) was sent on March 24, 1946 to India with a proposal of CONSTITUENT ASSEMBLY.
- ✓ ü **Note**: Remember the names of the members in the Cabinet Mission plan.
- ✓ ü The delegation rejected the claim for a separate Constituent Assembly and a separate state for Muslims.

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- ✓ ü The CONSTITUENT ASSEMBLY was constituted in November, 1946 with 389 members. (296 British India and 93 were from princely states).
- ✓ ü (**Please remember that the Constituent Assembly members were both elected (indirectly) and nominated.**)
- ✓ ü Out of **296 INC won 208 including all general seats except 9, Muslim League 73**, others and independent members 15. Princely states initially decided to stay away from the CONSTITUENT ASSEMBLY.
- ✓ ü **Kindly Note:** (**Except Mahatma Gandhi and Mohammed Ali Jinnah** all prominent persons were members in CONSTITUENT ASSEMBLY.
- ✓ ü The first meeting of the CONSTITUENT ASSEMBLY took place on December 9, 1946.
- ✓ ü Muslim League boycotted the meeting and insisted on separate state Pakistan.
- ✓ ü Meeting was attended by 211 members only.
- ✓ ü **Dr.Sachchidanand Sinha** - interim President of CONSTITUENT ASSEMBLY.
- ✓ ü December 11, 1946 - **Dr Rajendra Prasad** was elected as the President of the Constituent Assembly.
- ✓ ü H C Mukherjee - Vice President of the CONSTITUENT ASSEMBLY.
- ✓ ü **B N Rau** - Constitutional advisor.
- ✓ ü December 13, 1946 - “**Objectives Resolution**” was moved by Jawaharlal Nehru.
- ✓ ü The “Objective resolution” was **adopted on January 22, 1947**. (Who moved it? What are the dates? Important for the examination point of view).
- ✓ ü **Preamble was the modified version of the Objectives Resolution.** (Hence very important).
- ✓ ü Lord Mountbatten was sent to India as the Governor-General replacing Lord Wavell.
- ✓ ü Lord Mountbatten came out with a plan.
- ✓ ü This plan was given a formal shape by a statement made by British Government on June 3, 1947.
- ✓ ü This plan is known as Mountbatten plan or June 3 plan.
- ✓ ü On July 26, 1947 Lord Mountbatten announced the establishment of a separate Constituent Assembly for Pakistan.
- ✓ ü The Indian Independence bill was introduced in the British Parliament on July 4, 1947.
- ✓ ü The India Independence Act came into force from July 18, 1947.
- ✓ ü The Indian Independence Act of 1947 provided that from August 15, 1947 would be set up two

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independent dominions India and Pakistan.

- ✓ ü The Constituent Assembly reassembled on August 14, 1947 as the Sovereign Constituent Assembly for the Dominion of India.
- ✓ ü The members of the Pakistan area in the Constituent Assembly are ceased to be the members.
- ✓ ü When the Constituent Assembly reassembled on October 31, 1947 the membership was reduced to 299.
- ✓ ü With Indian Independence Act of 1947, CONSTITUENT ASSEMBLY became the sovereign body. (**India became sovereign on January 26, 1950**)
- ✓ ü **Note:** What is sovereign? we discuss in 'Preamble'.
- ✓ ü The CONSTITUENT ASSEMBLY became the **first parliament of free India**.
- ✓ ü The first speaker - G V Mavalankar.

ü CONSTITUENT ASSEMBLY adopted the

- ✓ **National Flag** on July 22, 1947.
- ✓ **Constitution** on November 26, 1949.
- ✓ **National Anthem** on January 24, 1950.
- ✓ **National Song** on January 24, 1950.
- ✓ ü Dr Rajendra Prasad was elected as the **first President** of India on January 24, 1950.
- ✓ ü January 24, 1950 was the **last session** of the CONSTITUENT ASSEMBLY.
- ✓ ü The Constituent Assembly continued as the provisional Parliament of India from January 26, 1950 to till the completion of first ever general elections in India. (1951-52)
- ✓ ü **Note:** All the above dates are very important.
- ✓ ü There were **22 committees** constituted in the CONSTITUENT ASSEMBLY
- ✓ ü 22 committees: 10 committees -procedural affairs and remaining 12 Committees were on Sustentative (Sustentative or Considerable) Affairs.
- ✓ ü Steering Committee chairman - K M Munshi.
- ✓ ü The Rules of procedure committee chairman - Dr Rajendra Prasad.
- ✓ ü Drafting committee chairman - Dr. B R Ambedkar.
- ✓ ü Union powers Committee chairman - Jawaharlal Nehru.

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- ✓ ü Committee on Union Constitution Chairman - Jawaharlal Nehru.
- ✓ ü Provincial Constitution Committee chairman - Sardar Patel.
- ✓ ü Committee of Fundamental Rights and Minorities head- Sardar Vallabhai Patel.
- ✓ ü The draft was prepared by B N Rau (Advisor to the Constituent Assembly).
- ✓ ü Drafting committee was set up on August 29, 1947 (**Very Important**).
- ✓ ü The Chairman of Drafting Committee - Dr. B R Ambedkar.
- ✓ ü The final draft was introduced in the CONSTITUENT ASSEMBLY by Dr B R Ambedkar on November 4, 1948 (1st reading).
- ✓ ü The 3rd reading was completed on November 26, 1949.
- ✓ ü The draft Constitution was declared adopted on November 26, 1949.
- ✓ ü The President and the members of the Constituent Assembly signed it.
- ✓ ü **Note:** Please remember this date is mentioned in the Preamble.
- ✓ ü The original Constitution contained 8 schedules and 395 Articles.
- ✓ ü Preamble was enacted after the enactment of the Constitution.
- ✓ ü (**Remember** “Preamble” was the last to be adopted and enacted).

Dr BR Ambedkar - The Father of the Constitution of India

(**Note:** DR B.R Ambedkar was the first Law Minister of the Nation from August 15, 1947 to January 26, 1950).

- ✓ ü Constitution came into force on January 26, 1950.
- ✓ ü Since then January 26, 1950 is celebrated as the Republic day.
- ✓ ü In all it took 2 years 11 months and 18 days for the Constitution to get completed.
- ✓ ü The Provisional Parliament ceased to exist on April 17, 1952. The first elected Parliament (2 houses) came into being in May, 1952.
- ✓ ü The provisions related to Citizenship, elections, provincial Parliament, temporary and transitional provisions were given immediate effect. (November 26, 1949).
- ✓ ü The rest of the Constitution came into force on January 26, 1950.

SOURCES OF THE INDIAN CONSTITUTION

GOI (Government of India Act) 1935:

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Note: This is the major source of Indian Constitution.

- ✓ ☐ Federal Scheme.
- ✓ ☐ Office of Governor
- ✓ ☐ Public Service Commissions

US CONSTITUTION:

- ✓ ☐ Judicial Review
- ✓ ☐ Fundamental Rights
- ✓ ☐ Independent Judiciary
- ✓ ☐ Impeachment procedure of the President
- ✓ ☐ The Vice President acting as the Chairman of the Upper House
- ✓ ☐ Removal of the Supreme Court and High Court Judges.

BRITISH CONSTITUTION:

- ✓ ☐ Rule of law
- ✓ ☐ Parliamentary form of government
- ✓ ☐ Single Citizenship

- ✓ ☐ Cabinet system
- ✓ ☐ Legislative procedure
- ✓ ☐ Bicameralism.

IRISH CONSTITUTION (IRELAND):

- ✓ ☐ Directive Principles of State Policy
- ✓ ☐ Nomination of members to the Upper House
- ✓ ☐ Election method of the President.

CANADIAN CONSTITUTION:

- ✓ ☐ Residuary powers with the centre
- ✓ ☐ Federation with a strong centre
- ✓ ☐ Appointment of State Governors by the Central Government
- ✓ ☐ Advisory jurisdiction of the Supreme Court.

SOUTH AFRICAN CONSTITUTION:

- ☐ Amendment procedure of the Constitution.
- ☐ Method of election of the members to the Upper House.

USSR: (UNION OF SOVIET SOCIALIST REPUBLICS)

- ☐ Fundamental Duties
- ☐ Ideals of Justice (Social, Economic and Political).

FRANCE:

- ☐ Republic
- ☐ Ideals of Liberty, Equality and Fraternity in the Preamble.

WEIMAR CONSTITUTION (GERMANY):

- ☐ Suspension of Fundamental Rights during emergency (National Emergency).

AUSTRALIAN CONSTITUTION:

- ☐ Concurrent list
- ☐ Joint sitting of 2 houses of the Parliament.

SILENT FEATURES OF THE INDIAN CONSTITUTION

Indian Constitution is a written Constitution.

- ☐ It is the largest Constitution. It is because
- ☐ It incorporated all the experiences gathered from the working of all the known constitutions in the World.
- ☐ To avoid all defects and loopholes that might be anticipated from the light of other constitutions.
- ☐ To minimize uncertainty.
- ☐ Majority of the provisions were borrowed from the GOI (Government of India) act 1935 because people were familiar with the existing system.
- ☐ It is explained in detail manner otherwise the new democracy may be jeopardized (make vulnerable, risk).
- ☐ Vastness of the country.
- ☐ Multifarious challenges in the country.
- ☐ The division of powers between the union and states is so exhaustive.
- ☐ It is a single Constitution for the entire country except for Jammu and Kashmir.

INDIAN CONSTITUTION IS BOTH RIGID AND FLEXIBLE.

- ☐ It is rigid, means there is a special procedure for amending the Constitution.
- ☐ It is flexible, means that with an ordinary procedure some areas in the constitution can be amended.

FEDERAL SYSTEM :

- ☐ It means the division of powers between centre and states.
- ☐ remember the word "Federation" is nowhere mentioned in the Constitution).
- ☐ Though India is a federation it also has unitary features.

PARLIAMENTARY FORM OF GOVERNMENT:

- ☐ This form talks about the presence of nominal (Dejure) and real (defacto) executives.
- ☐ Majority party rule.
- ☐ Collective responsibility to the Lok Sabha.
- ☐ Leadership of the Prime Minister (Chief Minister at the state level).
- ☐ The dissolution of Lok Sabha. (This type of government is present at both central and state levels).

Fundamental rights:

- ☐ These are for the promotion of political democracy. T
- ☐ These are justiciable i.e they are enforceable by the courts for their violation.
- ☐ Originally 7 fundamental rights were mentioned in the constitution.
- ☐ Through the 44th amendment 'Right To Property' has been deleted from the list of Fundamental Rights.
- ☐ At present only 6 fundamental rights are mentioned.

DIRECTIVE PRINCIPLES OF STATE POLICY (DPSP):

- ☐ They seek to establish welfare state in India.
- ☐ These are **non-justiciable**. (Cannot be challenged in the court of law)
(*In the **Minerva Mills case of 1980** the Supreme Court held that the Indian Constitution is founded on the bedrock of the balance between the Fundamental Rights and DPSP).

FUNDAMENTAL DUTIES:

- ☐ Added through 42nd amendment in the year 1976.
- ☐ They were added on the recommendations of swaran Singh Committee.
- ☐ Part IV A was added for accommodating Fundamental Duties.
- ☐ Originally 10 Fundamental Duties were added.
- ☐ 11th Fundamental Duty was added in the year 2002 through the 86th Constitutional amendment.
- ☐ At present 11 fundamental duties are mentioned in part IVA.

SECULAR STATE:

- ☐ (Equal respect to all religions).
- ☐ The Constitution does not uphold the any particular religion as the official religion.

UNIVERSAL ADULT FRANCHISE:

- ☐ All adults are permitted to vote.
- ☐ The original constitution permitted all the people who are not less than 21 years of age to vote.
- ☐ Through the 61st amendment voting age has been reduced from 21 to 18 in the year 1989.

EMERGENCY PROVISIONS:

- ☐ Provided for 3 types of emergencies.
- ☐ National Emergency
- ☐ State Emergency or President's Rule
- ☐ Financial Emergency
- ☐ During National emergency India from the state of Federation it becomes Unitary.

3 TIER GOVERNMENT:

- ☐ Through 73rd and 74th amendments 3 tier structures was created.
- ☐ Panchayati Raj and Municipalities are made the Constitutional bodies.

PREAMBLE

- ☐ Preamble is the introduction to the Constitution.
- ☐ This is the modified version of the '**Objectives Resolution**' that was moved by Jawaharlal Nehru on **December 13, 1946** and adopted by the Constituent Assembly on **January 22, 1947**.
- ☐ Note: Please remember the dates.

We, **THE PEOPLE OF INDIA**, having solemnly resolved to Constitute India into a Sovereign, **Socialist, Secular**, Democratic Republic and to secure to all its citizens:
JUSTICE, Social, Economic and Political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity; and to promote among them all;
FRATERNITY assuring the dignity of the individual and the unity and **integrity** of the Nation;
IN OUR CONSTITUENT ASSEMBLY this **twenty-sixth day of November, 1949**, do HEREBY ADOPT,
ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

- ☐ So far Preamble has been amended only once in the year 1976 through 42nd amendment.
- ☐ The 42nd amendment added 3 new words to the Preamble.

- ☐ **SOCIALIST**
- ☐ **SECULAR**
- ☐ **INTEGRITY**

Note: Underlined

- ☐ The Constitution derives authority from the people (We the people...).
- ☐ **Is preamble a part of the Constitution?** (Read carefully, many times there were questions from this area).
- ☐ 1960 – In the **Berubari case** the Supreme Court ruled that Preamble is not a part of Constitution.
- ☐ 1973 – In the **Kesavananda Bharati v. State of Kerala** case the Supreme Court rejected the earlier opinion and held that Preamble is a part of the Constitution. The Court said that the Constitution could not be amended so as to alter the basic elements.
- ☐ 1995 – In **LIC of India v. Consumer Education and Research centre** case the Supreme Court again held that the Preamble is an integral part of the Indian Constitution.
- ☐ Note: (Please remember **Preamble is non-justifiable**).

THE COMPONENTS OF THE PREAMBLE:

- ☐ The people of India are the source of the Constitution.
- ☐ The Preamble **declares** India to be of a
 - ☐ Sovereign
 - ☐ Socialist
 - ☐ Secular
 - ☐ Democratic
 - ☐ Republic
- ☐ The preamble specifies **the objectives** of the Constitution.
 - ☐ Justice
 - ☐ Liberty
 - ☐ Equality
 - ☐ Fraternity
- ☐ The date of adoption is mentioned in the Preamble is November 26, 1949.
- ☐ Note: Not the date on which the constitution came into force.
- ☐ The Preamble **indicates the source** from which the Constitution derived its authority.

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- ☐ The Preamble also states the objects which the Constitution seeks to establish and promote.

SOVEREIGN:

- ☐ Sovereign means independent authority of a state.
- ☐ This is the **absolute and supreme** power.
- ☐ This means that India has the power to legislate on any subject.
- ☐ India is **not subject to** the control of any external authority.
- ☐ India is neither dependency nor a dominion of any other nation but an independent state.

REPUBLIC:

- ☐ It means the head of the state is elected.

What is state?

This is explained by the Constitution under Articles 12 and 36.

ARTICLE 12: In this Part (Part III), unless the context otherwise requires, “the State” includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.

ARTICLE 36: In this Part (Part IV), unless the context otherwise requires, “the State” has the same meaning as in Part III.

- ☐ India has an elected President at the head for a fixed term of 5 years.
- ☐ **NOTE:** The President is elected indirectly through the method of proportional representation by means of a single transferable vote.
- ☐ Every citizen with the qualifications mentioned in the constitution is eligible to contest in the election of the President. All offices including that of the President will be open to all citizens.

SOCIALIST:

- ☐ This is added through the 42nd amendment act of 1976.
- ☐ The word socialism means placing means of production and distribution in the hands of public control. (state).
- ☐ Socialism also means elimination of inequalities in income and status and standard of living.
- ☐ In India this is the Democratic Socialism.
- ☐ Here there is an existence of both **Public and Private** sectors. This is called mixed economy.
- ☐ The socialism strives to end inequality of opportunity.

SECULAR:

- ☐ The term secular was added through the 42nd amendment in the year 1976.
- ☐ This means the state has **no official religion**.
- ☐ All religions in the country have the same status and support.

DEMOCRATIC:

- ☐ (Demos = People; Kratia = Rule)
- ☐ Democracy means rule by the people.
- ☐ The people of the country elect their own representatives.
- ☐ In India it is a representative democracy.
- ☐ One man one vote is the concept in democracy.

JUSTICE:

- ☐ Justice is harmonizing the interests between the individuals and between the individuals and groups and the interest of the community.
- ☐ This is not just confined to the legal justice.
- ☐ **Social justice** implies that all citizens are treated equally irrespective of their status in society as a result of the accident of birth, race, caste, religion, sex, title etc.
- ☐ Article 38 says that the state should strive to promote the welfare of the people.

ECONOMIC JUSTICE: Rich and poor are treated alike.

- ☐ Article 39: Certain principles of policy to be followed by the state. (equal pay for equal work)

POLITICAL JUSTICE:

- ☐ Every citizen is given equal priority in the political sphere.
- ☐ Because of this irrespective of propriety or educational qualifications, every citizen is allowed to participate in the political system.
- ☐ All citizens have the right to participate in the political process.
- ☐ Articles **325 and 326** provide for the equal rights to all adults to participate in elections.
- ☐ **ARTICLE 325:** No person to be ineligible for inclusion in or to claim to be included in a special, electoral rolls on grounds of religion, race, caste or sex.
- ☐ **ARTICLE 326:** Elections to the House of People (Lok Sabha) and to the legislative assemblies of states to be on the basis of adult franchise.

LIBERTY:

- ☐ It is the Liberty of thought, expression, belief, faith and worship.
- ☐ Article 19 guarantees the freedom of speech, expression etc.
- ☐ Articles 25 to 28 (right to religion) of the constitution the freedom of religion including the belief, faith and worship.
- ☐ Note: All Fundamental Rights rights are granted with the reasonable restrictions.

EQUALITY:

- ☐ All citizens are equal before the law and enjoy equal protection of the law of the land.

☐ **NOTE:**

1. Equality before law – borrowed from UK
 2. Equal protection of Laws – borrowed from the USA.
- ☐ There can be no discrimination between one person and another on the grounds of religion, race, caste, sex, place of birth in matters related to access to public places and public employment.
 - ☐ All citizens enjoy equal political rights.
 - ☐ Article **14 TO 18** of the Indian Constitution talks about right to equality.

FRATERNITY:

- ☐ This means promoting brotherhood among all the citizens.
- ☐ Single citizenship is directed towards promoting the fraternity.
- ☐ The fundamental rights that are guaranteed also promote the fraternity.
- ☐ The Directive Principles of State Policy talks about the promotion of harmony.
- ☐ The objective of the Dignity of the individual was to improve the quality of life for the individuals.
- ☐ The unity and integrity of the nation is possible through the dignity of the individual.
- ☐ **ARTICLE 51 A** (Fundamental Duties) makes it the duty of every citizen to uphold and protect the sovereignty, unity and integrity of India and promote harmony and brotherhood.

UNION AND ITS TERRITORIES

UNION AND ITS TERRITORY:

- ☐ The Union and its territory are mentioned under Part – I of the Indian Constitution.
- ☐ The concerned Articles are from 1 to 4.

ARTICLE 1:

1 (1): India, that is Bharat, shall be a Union of States.

1 (2): The States and UTs thereof shall be as specified in the first schedule

1 (3) (a): Territories of states

1 (3) (b): UTs as specified in the first schedule

1(3) (c): Such other territories as may be acquired

- ☐ The words ‘Union of states’ is preferred over the ‘Federation of States’ (Why?)
- ☐ The territory of India consists of
 - ☐ The territories of the states
 - ☐ The Union Territories
 - ☐ Any territories that may be acquired by India
- ☐ As on today there are 28 states and 7 Union territories in the country.
- ☐ The 7 Union territories
 - ☐ Delhi
 - ☐ The Andaman and Nicobar Islands
 - ☐ Lakshadweep
 - ☐ Dadra and Nagar Haveli
 - ☐ Daman and Diu
 - ☐ Pondicherry
 - ☐ Chandigarh
- ☐ The names of the states and the Union territories and the territories covered by each of them have been described in the **first schedule** of the Constitution.
- ☐ The **other countries possessions** can be added to India through Constitutional amendments.
- ☐ Through **10th amendment** of the Constitution in the year 1962 the Portuguese enclaves (possessions) of Dadra and Nagar Haveli was constituted into a Union territory.

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- Similarly Goa, Daman and Diu was added as a Union territory by the **12th** Constitutional amendment in the year 1962.
- The Pondicherry together with Karaikal, Mahe and Yanam were ceded to India by the French government in the year 1954.
- In the year 1962 through the **14th** Constitutional amendment Pondicherry together with Karaikal, Mahe and Yanam, the French possessions was added as a Union territory.

ARTICLE 2:

Parliament may by law admit new states into the union of India or establish new states on such terms and conditions as it thinks fit.

- The Article 2 of the Indian Constitution provides two powers to the Parliament.
- The power to admit the new states into the Union of India

And

- The power to establish new states.
- In the year 1974, the Sikkim Assembly passed the Government of Sikkim Act, 1974.
- This act empowered the Government of Sikkim to seek participation and representation of the people of Sikkim in the Indian political institutions for the speedy development of Sikkim.
- The resolution also meant for the representation of the people of Sikkim in the Indian Parliamentary system.
- In the year 1974 the 35th Constitution amendment act was passed by the Parliament to give effect to the resolution.
- The main provisions of the **35th** amendment act is Sikkim will be an 'associate state' of India.
- There was a criticism regarding the 35th amendment of the Constitution, since the original Constitution did not mention about the 'associated state'.
- The Parliament passed the **36th** amendment act.
- Sikkim has been admitted into the Union of India as a state.
- The 36th amendment act came into effect from April 26, 1975.
- Article 371F inserted to make some special provisions relating to the admission of Sikkim.

ARTICLE 3:

The parliament may by law is empowered to Form a new state

3 (a): By separation of territory from ant state

OR

by uniting 2 or more states or parts of states

OR

By uniting any territory to a part of any state.

3 (b): Increase the area of any state

3 (c): Diminish the area of any state

3 (d): Alter the boundaries of any state

3 (e): Alter the name of any state

- ☐ The Constitution empowered the Parliament **to reorganize** the boundaries of the states by a **simple majority**.
 - ☐ Article 3 lays down **two conditions** in the formation of new states.
- 1) The bill can be introduced in the Parliament only with the **prior recommendation** of the President.
 - 2) The President shall before giving recommendation refer the bill to the legislature of the state which is going to be affected by the changes proposed in the bill.
 - ☐ The state legislature must express its view in the time specified by the President.
 - ☐ The President is **not bound** by the view of the state legislature.
 - ☐ It is not necessary to make afresh reference to the state legislature every time an amendment to the bill is moved and accepted in the Parliament.
 - ☐ In case of Union territory, no reference need be made to the concerned legislature to ascertain its views and the Parliament can itself take any action as it deems fit.

ARTICLE 4:

4 (1): Any law referred to Article 2 or 3 shall contain such provisions for the amendment of the first schedule and fourth schedule as may be necessary to give effect to the provisions of the law and may also contain such supplemented, incidental and consequential provisions.

4 (2): No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purpose of Article 368.

- ☐ It means these can be passed without resorting to any special procedure.
- ☐ This can be done by a simple majority of the parliament like any other piece of ordinary legislation.

THE NAMES OF THE STATES CAN BE CHANGED

THROUGH THE PROVISION OF ARTICLE 3

- ☐ In the year 1950 the states United Provinces was renamed Uttar Pradesh.
- ☐ In the year 1969 Madras was renamed “Tamil Nadu”. This was done through Madras State (Alteration of name) Act, 1968 with effect from January 14, 1969.
- ☐ In the year 1973 Mysore was renamed ‘Karnataka’. This was done through Mysore State (Alteration name) Act, 1973.
- ☐ In the year 1973 Laccadive, Minicoy and Amindivi Islands renamed ‘Lakshadweep’.
- ☐ In the year 1992 the Union territory of Delhi was re-designated as the ‘National Capital Territory of Delhi’. This was done through 69th amendment act, 1991 with effect from February 1, 1992.

MISCELLANEOUS:

- ☐ The name of the country was discussed in the Constituent Assembly. While “Bharat” was the ancient name and India was the modern name. As a member of United Nations also the name of the country was India and

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all the international agreements were entered in that name. As a compromise ‘**India**’ that is ‘**Bharat**’ was accepted.

- ☐ No state in India could secede from the Union.
- ☐ The Parliament’s power to diminish the area of any state does not cover cession of Indian Territory to a foreign state.
- ☐ In the Berubari (West Bengal) case of 1960 on a presidential reference the Supreme Court expressed the opinion that no cession of territory could be made without a constitutional amendment. To give effect to an agreement with Pakistan for transfer of part of the Berubari territory, the 9th constitutional amendment took place in the year 1960.
- ☐ In the year 1969 the Supreme Court ruled that settlement of a boundary dispute between India and another country does not require a constitutional amendment. It can be done by an executive action since it does not involve cession of Indian Territory to a foreign country.
- ☐ India is an indestructible Union of destructible states.
- ☐ The country is described as the ‘Union’ although the Constitution is federal in structure.
- ☐ At the time of independence India comprised two categories of political units, namely the British provinces and princely states.
- ☐ The Indian independence Act, 1947 gave 3 options to the princely states, either to join India or Pakistan or remain independent.

- ☐ Out of 552 princely states 549 integrated with India by the efforts of Sardar Vallabhbhai Patel.
- ☐ The Hyderabad state was integrated through Police action.
- ☐ Junagarh was integrated through referendum.
- ☐ Kashmir was integrated through Instrument of Accession.
- ☐ The Indian Constitution of 1950 contained 29 states.
- ☐ The 29 states were classified into 4 parts.
- ☐ Part A contained 9 erstwhile governor’s provinces of British India.
- ☐ Part B contained 9 erstwhile princely states with legislatures.
- ☐ Part C contained 10 states. (Erstwhile Chief Commissioner’s provinces of British India and some of the erstwhile princely states).
- ☐ In Part D the Andaman and Nicobar Islands were kept as the solitary (lonely).
- ☐ In January 2012, the DMK (Dravida Munnetra Kazhagam) demanded that the taluks of Devikulam and Peermedu, now in Kerala and forming parts of catchment of Periyar river be merged with Tamil Nadu. This demand was first made by DMK way back in 1956 and 1957.
- ☐ The decision for the creation of a new state ‘Telenagana’ has been announced by the Congress Working Committee on July 30, 2013. At the same time the dormant demands from various states have been surfaced.
- ☐ Paschimanchal, Harit Pradesh, Bundelkhand, Awadh Pradesh and Purvanchal in the state of Uttar Pradesh.
- ☐ Vidarbha in Maharashtra
- ☐ Gorkhaland in West Bengal
- ☐ Bodoland and Karbi Anglong in Assam
- ☐ On December 4, 2013 the GoM (Group of Ministers) submitted its final recommendations to the Cabinet.

CITIZENSHIP

- ☐ The Citizenship is mentioned in Part II of the Indian Constitution.
- ☐ The Citizenship provisions are covered under articles 5 to 11 of the Indian Constitution.
- ☐ The Citizenship provides
- ☐ full political membership in the state
- ☐ permanent allegiance to the state

AND

- ☐ Official recognition by the state of his integration into the political system.

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- ☐ The citizen pledges loyalty to the state
- ☐ The state protects the citizens.
- ☐ The Citizenship to an individual also brings
- ☐ Rights
- ☐ Duties
- ☐ Privileges

And

- ☐ Obligations
- ☐ (All these do not belong to aliens)
- ☐ The Public (government) offices are open only to the citizens.
- ☐ Only the citizens are eligible for the offices of
- ☐ The President - (Article 58(1)(a))
- ☐ The Vice President - (Article 66(3)(a))
- ☐ The Judge of the Supreme Court - (Article 124(3))
- ☐ The Judge of a High Court - (Article 217(2))
- ☐ The Attorney-General - (Article 76(2))
- ☐ The Governor of a State - (Article 157)
- ☐ The Advocate-General - (Article 165)
- ☐ The right of suffrage (vote) for the election to the House of the people (Lok sabha) and the Legislative assembly of every state - (Article 326)
- ☐ Right to become a member of Parliament - Article (84)
- ☐ Right to become a member of a state legislature – Article (191(d))
- ☐ The citizens are eligible for recruitment to all public services.
- ☐ Only the citizens have the right to vote
- ☐ The concept of Citizenship came into existence since the adoption of the Constitution on November 26, 1949.
- ☐ The Constitution of India laid down the law in regard to who would be the citizens of India at the time of commencement of the Constitution.
- ☐ The Constitution of India has **not provided** for the mode of acquisition and termination of citizenship.
- ☐ As per Article 11 of the Indian Constitution the parliament could regulate the right of citizenship by law.
- ☐ The Parliament passed the Citizenship Act, 1955 for acquisition and termination of the Citizenship.

WHO ARE THE CITIZENS OF INDIA?

- ☐ As per the Article 11 of the Indian citizenship Act, the Parliament has enacted the Citizenship Act, 1955.
- ☐ The Citizenship Act, 1955 has been amended in 1986, 1992, 2003 and 2005.
- ☐ The Articles 5 to 8 of the Indian Constitution confers the citizenship on the people at the time of the commencement of the Indian Constitution.
- ☐ Persons domiciled in India
- ☐ Persons migrated from Pakistan
- ☐ Persons migrated to Pakistan but later returned to India
- ☐ Persons of Indian origin residing outside India
- ☐ **Article 5:** This provides that a person becomes entitled to the citizenship of India if,
- ☐ at the commencement of the Constitution he has his domicile in the territory of India,

Or

- ☐ he or either of his parents were born in India

Or

- He has been ordinarily resident in the territory of India for not less than 5 years immediately before the commencement of the Constitution.

DOMICILE:

The term Domicile is not defined in the Indian Constitution.

Domicile is a person's residence where he intends to live on a permanent basis.

Permanent residence

And

Intention to reside indefinitely
Constitutes the Domicile.

- **Article 6:** This provides for citizenship rights of migrants from Pakistan before the commencement of the Constitution.
- This provides 2 types of distinctions.
- The people migrating to India before July 19, 1948
- **And**
- The people migrating to India after July 19, 1948
- Note: Permit system for migration was introduced on July 19, 1948.
- A person migrated before July 19, 1948 shall be deemed to be a citizen of India on the commencement of the Constitution if.
- The person
- Or
- His parents (born in India as defined by the GOI Act, 1935)
- **OR**
- Any of grandparents (born in India as defined by the GOI Act, 1935)
- **And**
- Has been ordinarily residing in India since the date of the migration.
- In case of migration after July 19, 1948
- He should have been registered as a citizen of India by an officer appointed for the purpose by the government of India.
- **And**
- Has been residing in India for at least 6 months immediately preceding the date of application.
- **Article 7:** A person who migrated to Pakistan from India after March 1, 1947, but later returned to India for resettlement could become a citizen of India.
- For this the person he had to be the resident of India for 6 months preceding the date of his application for registration.
- Note: the meaning of Migration mentioned in Article 7 is the migration before the commencement of the Constitution.

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- ☐ The person migrating from Pakistan to India, after January 26, 1950 are governed by the Citizenship Act, 1955.
- ☐ **Article 8:** This Article provides that
 - ☐ A person
 - ☐ **Or**
 - ☐ Any of his parents
 - ☐ **Or**
 - ☐ any of his grand parents
 - ☐ born in India as defined by the Government of India Act, 1935
 - ☐ but ordinarily residing outside India shall become a citizen of India if registered as a citizen of India by the diplomatic representative of India in that country.
- ☐ This is with respect to before or after the commencement of the Constitution of India.
- ☐ **Article 9:** This provides that if a person voluntarily acquired the citizenship of another country, he shall forfeit the right of the citizenship of India.
- ☐ The above clause is applicable to cases arising before the commencement of the Indian Constitution.
- ☐ Such type of cases arising after the commencement of the Constitution shall be dealt by the Citizenship Act, 1955.
- ☐ **Note:** whether a person has lost the citizenship of India after acquiring the Citizenship of the other country is to be decided by the government of India.
- ☐ **Article 10:** this provides that every person who is or is deemed to be a citizen of India under any of the provisions in the articles 5 to 10 shall continue to be a citizen of India.
- ☐ This is subject to the provisions of any law made by the parliament.
- ☐ Article 11: This article provides for the Parliament to enact legislations pertaining to the acquisition and termination of the citizenship of India.
- ☐ The Parliament passes Citizenship Act, 1955 providing for the acquisition and termination of the citizenship.
- ☐ The citizenship can be **acquired** by **5** ways.
 - ☐ By Birth
 - ☐ By Descent
 - ☐ By Registration
 - ☐ By Naturalization
 - ☐ By incorporating a territory
- ☐ The citizenship can be **terminated** in **3** methods.
 - ☐ Renunciation
 - ☐ Termination
 - ☐ Deprivation

ACQUIRING THE CITIZENSHIP OF INDIA:

☐ **BY BIRTH:**

- ☐ This was amended in the year 1986.
- ☐ A person is the citizen of India by birth if
- ☐ He is born in India on or after January 26, 1950 but before June 30, 1987
- ☐ **OR**
- ☐ He is born in India on or after July 1, 1987 but at the time of the birth either of his parents was a citizen of India.
- ☐ Note: The children of foreign diplomats posted in India and enemy aliens cannot acquire the Indian citizenship by birth.

BY DESCENT:

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- ☐ A person born outside India was entitled to Indian citizenship if his father was an India citizen.
- ☐ **NOTE:** Not Mother
- ☐ This was amended in the year 1992.
- ☐ A person born outside India on or after January 26, 1950 is a citizen of India by descent if, at the time of his birth **either of his parents** was an Indian citizen.

BY REGISTRATION:

- ☐ Certain categories of persons can be registered as Indian citizens.
- ☐ Persons of Indian origin who are ordinarily resident in India for 5 years immediately before making an application for registration
- ☐ Persons of Indian origin who are ordinarily resident in any country or place outside India
- ☐ Persons who are married to citizens of India and who are ordinarily resident in India for 5 years immediately before making an application for registration
- ☐ Minor children of persons who are citizens of India

And

- ☐ Persons who are citizens of commonwealth countries
- ☐ (Note: The period of acquisition of citizenship by registration was increased from 6 months to five years).

BY NATURALIZATION:

- ☐ A foreigner can acquire the citizenship of India by naturalization if
- ☐ He renounces the citizenship of other country
- ☐ He is of good character
- ☐ He has an adequate knowledge of a language mentioned in the **8th schedule** of the Indian Constitution
- ☐ He is not a citizen of a country where Indian citizens cannot become naturalized citizens
- ☐ The government can waive all above conditions if a person has rendered distinguished service to the science, art, literature, world peace or human progress.

BY INCORPORATION OF TERRITORY:

- ☐ If any foreign territory becomes a part of India, then the government specifies through notification that the people of that territory shall be the citizens of India.

HOW THE CITIZENSHIP IS LOST?

BY RENUNCIATION:

- ☐ This is a voluntary act by which a person holding the citizenship of India as well as that of another country may give up one of them.
- ☐ When a person renounces the citizenship every minor child of his ceases to be an Indian citizen

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- ☐ But, the child within one year after attaining 18 years of age may resume Indian citizenship.

BY TERMINATION:

- ☐ When an Indian citizen acquires the citizenship of other country voluntarily, the Indian citizenship is automatically terminated.

BY DEPRIVATION:

- ☐ This is a compulsory termination of the Indian citizenship by the central government if
- ☐ The citizen has obtained the citizenship by fraud

Or

- ☐ The citizen has shown the disloyalty to the constitution of India

Or

- ☐ The citizen has unlawfully traded or communicated with the enemy during a war

Or

- ☐ The citizen has, within 5 years of registration or naturalization been imprisoned in any country for 2 years

Or

- ☐ The citizen has been ordinarily resident out of India for 7 years continuously.
- ☐ **NOTE:** This is not applicable to students and employees who are serving in the international organizations. If a person registers annually at the Indian consulate his intention to retain the Indian citizenship.

MISCELLANEOUS:

- ☐ The Constitution avoided the dual citizenship.
- ☐ There is only once citizenship related to the domicile in the territory of whole India and not in a part of the country.
- ☐ **Note:** In US there is dual citizenship.
- ☐ The Citizenship act of 1955 provided for the Commonwealth Citizenships. But this provision was repealed by the Citizenship (Amendment) Act, 2003.
- ☐ The PIO (Person of Indian Origin) card entitles a person to visit India without a visa.

FUNDAMENTAL RIGHTS

- ☐ These are enshrined in Part III of the Indian Constitution under Articles 12 to 35.
- ☐ These were borrowed from the US constitution (Bill of Rights).
- ☐ According to Dr. B R Ambedkar it is the most criticized part of the Constitution.
- ☐ The fundamental rights are justifiable.
- ☐ In the original Constitution 7 Fundamental Rights are mentioned.

- **Right to Equality (14-18)**
- **Right to Freedom (19-22)**

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- **Right Against Exploitation (23-24)**
- **Right to Freedom of Religion (25-28)**
- **Cultural and Educational Rights (29-30)**
- **Right to property (31) (Deleted through the 44th amendment)**
- **Right to Constitutional Remedies (32).**

- ☐ In the year 1978, through 44th amendment act Right to property was deleted from the list of Fundamental Rights.
- ☐ Now it is a legal right under Article 300 A in part XII of the constitution.
- ☐ The numbers of Fundamental Rights are 6 in the present day Constitution.
- ☐ The state can impose restrictions on Fundamental rights. (They are not absolute but qualified).
- ☐ Except Fundamental rights guaranteed under Articles 20 and 21 remaining Fundamental rights can be suspended during operation of National Emergency.
- ☐ Article 19 can be suspended only when emergency is declared on the grounds of war or external aggression and not on the grounds of armed rebellion.
- ☐ Article 12 explains the state. The state includes
 - ☐ The government and the parliament of India
 - ☐ The government and the state legislature
 - ☐ All local authorities (municipalities, Panchayat Raj, District boards, etc)
 - ☐ Other statutory and non statutory authorities (LIC, ONGC etc).
- ☐ The actions of the state (all the above said) can be challenged in the courts as the violation of Fundamental Rights.
- ☐ Article 13: All laws that are inconsistent with or in derogation of any of the Fundamental Rights shall be void.
- ☐ This article expressly provides for the doctrine of judicial review. This power is conferred to SC (**Article 32**) and High Courts (**Article 226**) that can declare a law unconstitutional and invalid on the grounds of contravention of any of the fundamental Rights.
- ☐ Note: The words “**Judicial Review**” are not mentioned in the Constitution.

☐ **RIGHT TO EQUALITY (14-18)**

- ☐ **Article 14:** Equality before law and equal protection of laws.
 - ☐ Equality before law: The absence of any special privileges in favor of any person
 - ☐ Note: Equality before law is taken from the British Constitution.
 - ☐ Equal Protection of Laws: The equality of treatment under equal circumstances.
 - ☐ Note: This is taken from the US Constitution.
- ☐ **Article 15:** Prohibition of **discrimination** on the grounds **only** of religion, race, caste, sex, or place of birth. (Access to various places).

☐ **Exceptions:**

- ☐ Special provisions for children and Women
- ☐ Socially and economically backward sections
- ☐ Scheduled castes
- ☐ Scheduled Tribes

- ☐ **Article 16:** Equality of opportunity in matters of Public employment.
- ☐ Article 16(4) empowers the state to make special provisions for the reservation of appointments or posts in favour of any “backward class of citizens” which in the opinion of state are not adequately represented in the services of the state.
- ☐ **Article 17:** Abolition of un-touch-ability and prohibition of its practice.
- ☐ Accordingly the Parliament passed Untouchability (offences) Act, 1955.
- ☐ In the year 1976, this act is renamed as Civil Rights Act, 1955.
- ☐ **ARTICLE-18:** Abolition of titles except military and academic.

Note: On December 23, 2013 the High Court of Andhra Pradesh ordered two cinema personalities Mohan Babu and Bramhanandam to surrender 'Padma Sri' to the President.

- ☐ **RIGHT TO FREEDOM (19-22):**
- ☐ **ARTICLE 19:** Protection of 6 rights.

Right to freedom of speech and expression 19 (1) (a)
(freedom of expression means the right to express one's opinion by words of mouth, writing, printing, picture, or in any other manner)

- Right to assemble peacefully and without arms
- Right to form associations
- Right to move freely throughout the territory of India
- Right to reside and settle in any part of the territory of India
- Right to practice any profession or to carry on any occupation, trade or business
- Right to acquire, hold, and dispose of property (deleted through 44th amendment)

Note: On November 20, 2012 the Maharashtra police arrested 2 women (Shaheen and her friend) for twitting in Facebook for the expression of their opinion after the demise of Shivaseena leader Bal Thackery. This was objected many as the violation of article 19 (1) (a) of the Indian Constitution.

- ☐ **Article 20:** Protection in respect of conviction for offences.
- ☐ No ex-post-facto Legislation:
- ☐ No Double Jeopardy
- ☐ No Self-incrimination
- ☐ **Article 21:** Protection of life and personal liberty except in accordance with the procedures established in law.
- ☐ Right to live with human dignity, decent environment, privacy, free education up to 14 years etc.

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- ☐ **Article 21 A:** Right to free and compulsory education for all the children.
- ☐ **Note:** This was present in Article 45 of the constitution. Through 86th amendment in 2002 it was made a fundamental right. This came into force on April 1, 2010.
- ☐ **Article 22:** Protection against arrest and detention in certain cases.
- ☐ Under punitive detention: right to be informed of the grounds of arrest, consult a legal practitioner, and produce before the magistrate within 24 hours.
- ☐ Under preventive detention: grounds of detention should be communicated, provide an opportunity to make representation.
- ☐ **RIGHT AGAINST EXPLOITATION (23-24):**
- ☐ **Article 23:** Prohibition of traffic in human beings and forced labor.
- ☐ **Article 24:** Prohibition of employment of children in factories.
- ☐ **RIGHT TO FREEDOM OF RELIGION (25-28):**
- ☐ **Article 25:** All persons are equally entitled to
 - ✓ freedom of conscience,
 - ✓ the right to freely
 - ✓ profess
 - ✓ practice
 - ✓ ☐ And propagate religion.
 - ✓ ☐ Note: Propagation does not include 'forced conversions'.
- ☐ **Article 26:** Freedom to Manage Religious Affairs:
 - ☐ To establish and maintain institutions for religious and charitable purposes
 - ☐ Own and acquire movable and immovable property
 - ☐ Right to administer the property
- ☐ **Article 27:** Freedom for Taxation for promotion of a religion.
- ☐ No person shall be compelled to pay taxes for the promotion and maintenance of any religion.
- ☐ **Article 28:** Freedom from attending religious instruction.
- ☐ No religious instruction shall be provided in any educational institute wholly maintained out of state funds.
- ☐ Religious instructions permitted if it is established by endowments or trust.

Article 28(3): No person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to take part in any religious instruction that may be imparted in such institution or to attend any religious worship that may be conducted in such institution or in any premises attached thereto unless such person or, if such person is a minor, his guardian has given his consent thereto.

- ☐ **CULTURAL AND EDUCATIONAL RIGHTS (29-30):**

Article 29: Right to conserve language, script or culture.

- The Article 29 grants protection to both religious and linguistic minorities.
- **Article 30:** Right of Minorities to Establish and administer Educational Institutions:
- All Minorities have the right to establish and administer educational institutions of their choice.

RIGHT TO CONSTITUTIONAL REMEDIES (32):

- The Supreme Court and High Courts can issue writs.
- Right to move Supreme Court for the enforcement of Fundamental Rights including the writs of Habeas corpus, Mandamus, Prohibition, Certiorari and Quo warren to.
- Under Article 359 of the constitution provides the right to move Supreme Court can be suspended during national emergency.

According B R Ambedkar Article 32 is the **heart and soul** of the Indian Constitution.

ü **HABEAS CORPUS: (TO PRODUCE THE BODY).**

- ü This means produce the body.
- ü It is an order issued by the court to a person who has detained another person, to produce the body of the latter before it. Hence this is against arbitrary detention. This can be issued to a private person or public authorities.
- ü **Mandamus:** (To Command): Issued to a public official asking him to perform his official duties that he has failed or refused to perform. (this cannot be issued against President or Governor or CJ of a HC or against any private person).
- ü **Prohibition:** (to forbid): Issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess.
- ü **Certiorari** (To be certified or to be informed): Issued by a higher court to a lower court or tribunal either to transfer case pending with the latter to it or to squash the order of the latter in a case.
- ü **Quowarranto** (By what Authority?): It is issued by a court to enquire into the legality of claim of a person to a public office.
- ü **NOTE:** Under Representation of Peoples Act of 1951 a person is allowed to contest from not more than 2 constituencies. In the year 2001 the leader of AIADMK Jayalalithaa contested from 4 constituencies (Andipatti, Krishnagiri, Bhuvanagiri and Pudukottai). On November 20, 2012 the Supreme Court quashed a criminal proceeding against CM J Jayalalithaa initiated for filing 4 nomination papers in the 2001 assembly polls and asked Madras High Court to re-examine its order to lodge the case against her.
- ü Note: As per SC the HC of Madras did not consider the 2 reports of the Returning Officer were not considered while passing the order.
The SC asked HC to examine the issue in 4 months. The SC order came on Jayalalithaas plea against the HC order to Election Commission to register a criminal case.
- ü Note: All the 4 nominations of Jayalalithaas were rejected as she had been disqualified from contesting the polls at the that time due to her conviction in the TANSI land deal case. A former DMK MP C Kuppuswamy

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moved HC against her and the HC in June 2007 directed the EC to register a case and the same was stayed by the SC in July 2007.

- ü The HC held that Jayalalitha's declaration in 3rd and 4th constituencies (Bhuvanagiri and Pudukottai) that she has not been nominated from more than 2 segments was false to her own knowledge and amounts to violation of section 33 (7) (b) of the RPA as per which a candidate cannot contest from more than 2 constituencies.
- ü **Article 33:** The Parliament is empowered to abrogate the fundamental rights of the members of armed forces, Para-military forces, police forces, intelligence agencies and other related agencies.
- ü Note: The law made by the Parliament under Article 33 cannot be challenged in the court of law
- ü **Article 34:** This provides for the restriction of the fundamental rights while martial law is in force in any area within the territory of the country.
- ü **Article 35:** The Parliament makes laws to give effect to certain specified fundamental rights shall vest only in Parliament and not in the state legislature.
- ü As per the provisions of the Article 35 the Parliament prescribes residence as a condition for certain employments or appointments in a state or union territory or local authority. (Article 16).
- ü The Parliament can empower the lower courts (Other than Supreme Court and High Courts) to issue directions, orders, and writs of all kinds for the enforcement of the fundamental rights.

MISCELLANEOUS:

- ✓ ü The concept of Martial Law has been borrowed from the English Common Law.
- ✓ ü The words "Martial law" is not defined in the Constitution. The literal meaning is military rule.
- ✓ ü Martial law is imposed to restore the breakdown of law and order due to any reason.
- ✓ ü The concept of "Equality before law" is taken from UK.
- ✓ ü The concept of "Equal Protection of Laws" taken from USA.
- ✓ ü The term 'untouchability' is not defined in the constitution.
- ✓ ü The term minority is not described in the constitution.
- ü The writs were borrowed from English law and they are known as prerogative writs.
- ✓ ü Right to Privacy (Article 21): The Supreme Court in the PUCCL vs Union of India in 1997, had ruled that telephone conversation in private, without interference, would come within the purview of right to privacy as mandated in the Constitution; and unlawful means of phone tapping amounted to invasion of privacy and were uncivilized and undemocratic in nature.
- ✓ ü The Supreme Court ruled that the right to life under Article 21 of the Constitution would include a pollution free environment.
- ✓ ü In January 2012 the Supreme Court observed that the right to life and liberty guaranteed to a citizen under Article 21 of the Constitution cannot be taken away without following the due procedure. The mere apprehension of the authorities that an accused was likely to be released on bail was not a ground for passing preventive detention orders.
- ✓ ü As per the directions given by the Supreme Court, under RTE (Right To Education) Act all the Private schools will have to provide 25 percent reservation for poor students from the academic year 2012 -13.
- ü **Bombay High Court (October 29, 2013) on Article 28 (3):** In 2008 Sanjay Salve an English teacher in Savitri Bhai Phule secondary school, Nasik was refused to fold his hands at prayer time in the school. The school has frozen his increments. He took the school to the court. The court ruled that the folding of hands at prayer time

in state-funded schools could not be imposed on individuals as it went against Article 28 (3). Justice Abhay oka ruled that salve should respectfully remain present at prayers.

DIRECTIVE PRICIPAL OF STATE POLICY

DIRECTIVE PRINCIPLES OF STATE

POLICY (PART IV, Articles 36-51)

- ü The Directive Principles are the needs of the community.
- ü DPSP was borrowed from Irish Constitution.
- ü These are the recommendations to the state in Legislative, Executive and Administrative matters. (State means Legislative and Executive organs of the Central and State governments, all local authorities and all other public authorities in the country).
- ü In GOI (Government of India) 1935 Act “Instruments of Instructions” enumerated and in the Indian Constitution they are called Directive Principles of State Policy.
- ü DPSP embody the concept of a welfare state.
- ü The Directive Principles are the operative part of the Constitution.
- ü The Directive Principles of State Policy constitute a very comprehensive economic, social and political program for modern democratic stste.
- ü The idea of the principles is that realizing the high ideals of Justice, liberty, equality and Fraternity as outlined in the Preamble.
- ü Directive Principles of State Policy are non-justifiable in nature. (They are not legally enforceable by the courts for their violation).
- ü Article 36: It defines the state. It has the same meaning as given in Article 12 of Part III (fundamental rights) of the Indian Constitution.
- ü Article 37: The Directive Principles are “fundamentals in the governance of the country”. It shall be the duty of the state to apply these principles in making laws.
- ü Article 37 also contains a clause of that mentions the non-justiciability of the Directive Principles. It made it clear that the Judiciary should not compel the state to perform a duty under the directive principles of state policy.
- ü Article 38: The state shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of social life.
- ü **Note:** Article 38 is the key stone or the core of the Directive principles.
- ü Article 39: The Right to adequate means of livelihood for all citizens, equal Pay for equal work for both men and women.
- ü Article 40: To organize Village Panchayats.
- ü Article 41: Right to work, Public Assistance in the event of unemployment.
- ü Article 42: The provision for just and humane conditions of work and maternity leave.
- ü Article 43: Living wage for workers.
- ü Article 44: Uniform Civil Code for the whole country.
- ü Article 45: Provision for early childhood care and education to children below the age of 6 years.
- ü Article 46: Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes and other backward classes.
- ü Article 47: To prohibit the consumption of intoxicating drinks and drugs. It is the duty of the state to raise the level of nutrition and the standard of living to improve public health.
- ü **Note:** In India Gujarat, Manipur, Mizoram, Nagaland and Lakshadweep prohibited manufacture, sale and consumption of alcohol. In Gujarat the law is in force since May 1, 1960. Gujarat is the only state in India that has the death penalty for those who found guilty of making and selling spurious (fake) liquor which causes death. This was done by amending the Bombay Prohibition (Gujarat Amendment) Bill 2009.

- ü Note: the Bombay Prohibition Act 1949 is still in operation in both Maharashtra and Gujarat.
- ü Note: The **Bangaram** Island is the only place in Lakshadweep where the consumption is permitted.
- ü Impact of Prohibition in Haryana: After the 1996 assembly elections the HVP (Haryana Vikas Party) imposed ban on liquor by the CM Bansilal and it had a very bad impact in the 1998 Lok Sabha elections where it won only 1 Lok Sabha seat from the state (Out of 10). In the year 1998 the government lifted the ban.
- ü Article 48: Organization of agriculture and animal husbandry and prohibition of cow slaughter.
- ü Article 49: Protection of monuments, places and objects of National importance.
- ü Article 50: Separation of Judiciary from Executive.
- ü Article 51: To promote international peace and security, just and honorable between nations, respect for international law.
- ü **86th Amendment of 2002 changed the subject matter of Article 45 and also made elementary education a fundamental right under Article 21 A.** (This came into effect on April 1, 2010). With this the Children between the age group of 6 and 14 are entitled for free education.
- ü B N Rau (Constitutional advisor) recommended that the rights to be divided into justifiable and non-justifiable. Accordingly Part III and Part IV came into the picture.
- ü In **Champakam Dorairajan case (1951)** the Supreme Court ruled that in case of any conflict between Fundamental Rights and DPSP, the Fundamental rights would prevail.
- ü In **Golaknath case (1967)** the Supreme Court held that Fundamental Rights cannot be amended for the implementation of DPSP.
- ü In **Keshavananda Bharati case (1973)**: The Supreme Court declared that there is no essential dichotomy between the Fundamental rights and the Directive principles. They complement and supplement each other.
- ü 42nd amendment of 1976 accorded supremacy to Directive Principles of State Policy over Fundamental rights.
- ü In Minerva Mills (1980) case the status of Directive Principles of State Policy was made subordinate to the Fundamental rights.

MISCELLANEOUS:

- ü **DR B R AMBEDKAR:** The Directive Principles are the novel feature of the Indian Constitution. The Directive Principles along with the Fundamental rights contain the Philosophy of the Constitution and is the soul of the Constitution.
- ü **DR BR AMBEDKAR:** A state just awakened from freedom with its many preoccupations might be crushed under the burden unless it was free to decide the order, the time, the place and the mode of fulfilling them.
- ü **JAWAHARLAL NEHU'S STATEMENT IN 1951:** The DPSP represent a dynamic move towards a certain objective. The Fundamental rights represent something static, to preserve certain rights which exist. Both are right. But, somehow and sometime it might so happen that dynamic movement and that static standstill do not quite fit into each other.
- ü Article 38 is the key of the Directive Principles.
- ü Dr B R Ambedkar was strongly in favor of Uniform Civil Code.
- ü In S R Bommai vs Union of India case in 1994 the Supreme Court urged the government to enact a Uniform Civil Code to promote National Integration.
- ü The Supreme Court (1994) stated that the Article 44 had remained a dead letter.
- ü The Preamble, Fundamental Rights and the DPSP are the integral parts of the Indian Constitution. All the three are meant for building an egalitarian (equal) society and in the concept of socio-economic justice.
- ü If The Fundamental Rights represent the don'ts, the DPSP represents the Do's of the executive and legislature then there is conflict.
- ü **JAWAHARLAL NEHU'S STATEMENT IN PARLIAMENT IN 1955:** The responsibility for economic and social welfare policies of the nation should lie with the Parliament and not with the Courts. In case of

contradiction it was for Parliament to remove the contradiction and make Fundamental rights sub serve the Directive Principles of State Policy.

- ü **A Sessions Court in Delhi on forced marriage of a Muslim woman:** The statements were given on January 1, 2013 while dismissing an anticipatory bail application moved by a maulvi accused of forcing a young Muslim girl into a wedding with a married man who allegedly raped her subsequently. According to maulvi the Shariah permitted a Muslim to keep 4 wives at a time and that the girl consented to the marriage. The judge Kamini Lau noted that the girl had not signed the marriage certificate. Her parents were not present nor were there any witness. According to the judge the Indian Legal system provides sufficient space for religious freedom but whenever any such regressive religious practice come into conflict with the rights of the citizens as enshrined in the Indian Constitution, it becomes obligatory for courts to ensure that it is the majesty of law and the constitutional mandate that prevails. Judge made it very clear that in Islamic societies Polygamous marriages are permitted but only in certain circumstances, that is primarily in situations where a man's death has left his widow with no means or support. Polygamy is neither mandatory nor encouraged but merely permitted. The Korans conditional endorsement stresses that self interest or sexual desire should not be the reason for entering into a polygamous marriage. It is a practical duty that is associated with the social duty of Islamic men to protect the social and financial standing of widow and orphans in their community.

FUNDAMENTAL DUTIES

(Part IV A, Article 51 A)

1. These were added on the recommendation of Swaran Singh Committee (1976).
2. This committee recommended for the inclusion of 8 fundamental duties, the amendment included 10 fundamental duties.
3. The Fundamental Duties are borrowed from erstwhile USSR.
4. The 10 Fundamental Duties were added to the Constitution in the year 1976 through 42nd amendment.
5. The 11th Fundamental Duty was added in the year 2002 through the 86th amendment of the Indian Constitution.

THE 11 FUNDAMENTAL DUTIES:

These duties are laid down in the Article 51A.

- a) To abide by the Constitution and respect its ideals and institutions, the National Flag and National Anthem
- b) To cherish and follow the noble ideals which inspired our national struggle for freedom.
- c) To uphold and protect the sovereignty, unity and integrity of India.
- d) To defend the country and render national service when called upon so
- e) To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities to renounce practices derogatory to the dignity of women.
- f) To value and preserve the rich heritage of our composite culture.
- g) To protect and improve the natural environment including forests, lakes, rivers and wild life and to have compassion for living creatures
- h) To develop scientific temper, humanism and the spirit of inquiry and reform
- i) To safeguard public property and abjure violence.
- j) To strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavor and achievement.

- k) Every parent or guardian is to provide opportunities for education to his/her child or ward between the age of 6 and 14.

AMENDMENT OF THE INDIAN CONSTITUTION

- ü Amendment is nothing but modification of the Constitution.
- ü Amendment means
- ü Addition
- ü Deletion
- ü Modification of that already existing in the Constitution.
- ü The amendment of the Indian constitution is mentioned in [PART XX](#) of the constitution.
- ü The procedure is mentioned under [article 368](#) of the Indian Constitution.
- ü The parliament is empowered to amend the constitution.
- ü Indian Constitution is both rigid and flexible.
- ü The constitution is **rigid means** it is amended with a **special majority**.
- ü The Constitution is **flexible** means it is amended with a **simple majority**.

NOTE: The Parliament cannot amend the basic features of the Constitution.

- ✓ ü This was ruled by the Supreme Court in the keshavananda Bharati case of 1973.
- ✓ ü Various judgments of the Supreme Court have given many points that constitute the basic structure of the Constitution.
- ✓ ü From various judgments of the Supreme Court the basic structure of the Constitution can be
- ✓ ü The supremacy of the Constitution.

- ✓ ü Sovereign, Democratic and Republic nature of the Indian Polity

- ✓ ü Secularism

- ✓ ü Separation of powers between legislature, executive and Judiciary

- ✓ ü Federal character

- ✓ ü Judicial review

- ✓ ü Freedom and dignity of the individual

- ✓ ü Rule of law

- ✓ ü Unity and Integrity of the nation

- ✓ ü Balance between Fundamental Rights and Directive Principles of State Policy

- ✓ ü The Principle of equality

- ✓ ü Free and fair elections

- ✓ ü Independence of Judiciary

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- ✓ ü Limited powers of the Parliament to amend the Constitution
- ✓ **Please Note:** All the above case laws I discuss in a separate chapter.

HOW MANY METHODS ARE MENTIONED TO AMEND THE CONSTITUTION?

- ü The article 368 provides for two types of amendments.
 - By a Special majority of the Parliament.
 - By a special majority of the Parliament and consent by at least half the states by simple majority.

Note : Some other articles in the Constitution also provides for the amendment of the Constitution.

- ü Hence, the Constitution of India can be amended in three ways.
- ü **Note:** Please remember Article 368 provided 2 methods only. Amendment with simple majority is mentioned **outside the purview Article 368** where ever it is required.
- § Amendment by simple majority of the Parliament.
- § Amendment by a special majority of the Parliament.
- § Amendment by a special majority of the Parliament and ratification (consent) by at least half the states legislatures.

WHAT IS THE PROCEDURE FOR AMENDMENT OF THE CONSTITUTION?

- ü The procedure for the amendment is initiated in the Parliament (Lok Sabha or Rajya Sabha) only.
- ü The amendment is initiated only by introducing a bill in the Parliament.
- ü The procedure **cannot** be initiated in the state legislatures.
- ü The bill can be introduced either by a public member (Minister) or by a Private member (who is not a Minister, but a member of the house).
- ü The amendment bill **does not** require the prior permission of the President.
- ü The amendment bill must be passed in each house by a special majority.
- ü **Special majority:** A majority of more than 50 percent of the total membership of the house and a majority of 2/3rd of members of the house present and voting.
- ü The bill must be passed in each house separately.
- ü If there is a disagreement between the Lok sabha and Rajya Sabha the bill is considered to be rejected.
- ü There is **no provision of the Joint Session** in the Constitution for the purpose of passing a constitution amendment bill.
- ü **Note:** Joint session is summoned by the President only when there is a disagreement between two houses of the parliament with reference to **ordinary bills** only.
- ü If the amendment bill seeks to amend the federal provisions of the constitution, the bill must be ratified by the legislatures of half of the states by a simple majority.
- ü The bill is presented to the President after it is passed by the Parliament and the state legislatures (in case of federal provisions).
- ü The President must give assent to the constitution amendment bill.
- ü The President **cannot** withhold the assent to the bill.
- ü The President **cannot** return the bill for the reconsideration of the Parliament.

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- ü Note: The 24th constitutional amendment of 1971 made obligatory on the part of the President to give the assent for the constitutional amendment bill.
- ü After the assent of the President the amendment bill becomes an act.

Types of Amendments

the Constitution can be amended in three ways:

- (a) Amendment by simple majority of the Parliament,
- (b) Amendment by special majority of the Parliament, and
- (c) Amendment by special majority of the Parliament and the ratification of half of the state legislatures.

By Simple Majority of Parliament

A number of provisions in the Constitution can be amended by a simple majority of the two Houses of Parliament outside the scope of Article 368. These provisions include:

1. Admission or establishment of new states.
2. Formation of new states and alteration of areas, boundaries or names of existing states.
3. Abolition or creation of legislative councils in states.
4. Second Schedule—emoluments, allowances, privileges and so on of the president, the governors, the Speakers, judges, etc.
5. Quorum in Parliament.
6. Salaries and allowances of the members of Parliament.
7. Rules of procedure in Parliament.
8. Privileges of the Parliament, its members and its committees.
9. Use of English language in Parliament.
10. Number of puisne judges in the Supreme Court.
11. Conferment of more jurisdiction on the Supreme Court.
12. Use of official language.
13. Citizenship—acquisition and termination.
14. Elections to Parliament and state legislatures.
15. Delimitation of constituencies.
16. Union territories.
17. Fifth Schedule—administration of scheduled areas and scheduled tribes.
18. Sixth Schedule—administration of tribal areas.

AMENDMENT BY SPECIAL MAJORITY OF PARLIAMENT:

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- ü The majority of the provisions in the constitution need to be amended by special majority.

ü What is special majority?

- ü This is the majority of the total membership of each house

And

- ü a majority of $\frac{2}{3}^{\text{rd}}$ of the members of each house present and voting.
- ü The important provision that can be amended through special majority are

- Fundamental Rights
- Fundamental Duties
- Directive Principles of State Policy

By Special Majority of Parliament and Consent of States

Those provisions of the Constitution which are related to the federal structure of the polity can be amended by a special majority of the Parliament and also with the consent of half of the state legislatures by a simple majority. If one or some or all the remaining states take no action on the bill, it does not matter; the moment half of the states give their consent, the formality is completed. There is no time limit within which the states should give their consent to the bill.

The following provisions can be amended in this way:

1. Election of the President and its manner.
2. Extent of the executive power of the Union and the states.
3. Supreme Court and high courts.
4. Distribution of legislative powers between the Union and the states.
5. Any of the lists in the Seventh Schedule.
6. Representation of states in Parliament.

Power of Parliament to amend the Constitution and its procedure (Article 368 itself).

FEDERAL PROVISIONS:

- ü Election of the President and its manner
- ü Extent of the executive powers of the union and the states
- ü Distribution of legislative powers between the union and the states
- ü Extension of reservation for Scheduled caste, Scheduled Tribes and Anglo-Indians in the Parliament and the state legislatures.
- ü Representation of states in the Parliament.
- ü Power of the Parliament to amend the Constitution and its procedure.

MISCELLANEOUS:

- ü December 20, 2012: The Constitution amendment bill to include a new article 371 (J) in the Indian Constitution to provide a special status to the backward Hyderabad – Karnataka regions got its nod for the 2nd time in the LS with members unanimously approving it after a division of votes as a small correction had to be made. The Bill Constitution (Ninety Ninth Amendment) Act 2012 was brought in again with the new

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numbering The Constitution (Ninety Eighth Amendment) Act 2012. The new numbering had to be made as the bill providing quota for SC /ST in government jobs which was earlier numbered 98 could not sail through in the LS. The region that gets the special status includes Gulbarga, Yadgir, Raichur, Bidar, Koppal and Bellary will get special grants from central and state governments. There would be a reservation for the people of the area in the government jobs and education.

OFFICIAL LANGUAGE

- ü The Official languages are mentioned in the 8th Schedule of the Constitution.
- ü The official language is mentioned in the part XVII of the Indian Constitution.
- ü The original Constitution mentioned 14 languages as the official languages.
- ü This is covered in the articles from 343 to 351.
- ü Hindi is the official language of the Union.
- ü The English language was permitted for not more than a period of 15 years from the date of commencement of the Constitution for all the official purposes of the Union.

- ü OFFICIAL LANGUAGE ACT, 1963: The English language was continued as the official language along with Hindi by enacting Official Language Act, 1963.

- ü ARTICLE 343: The official language of the Union shall be Hindi in Devanagari script.

- ü The Official Language Commission is appointed by the President.
- ü The first Official Language Commission was appointed in the year 1955.
- ü B G Kher was the chairman of the first Official Language Commission.
- ü Every bill that is introduced in the Parliament is also accompanied by a Hindi translation.
- ü The language that is used in SUPREME COURT is English only.
- ü The state legislatures were permitted to adopt any one or more than one languages.
- ü NOTE: A state can adopt more than one language.
- ü The Parliament can provide that all the proceedings in Supreme Court and High Courts are to be in English.
- ü The Governor with the prior consent of the President can authorize the use of Hindi or any other language of the state in the proceedings of the concerned High Court.
- ü All bills, acts, ordinances, orders, rules, regulations and Bye-laws at the central and states to be in English.
- ü The state legislature can prescribe the use of any language other than English with respect to bills, acts, ordinances, orders, rules, regulations, or bye-laws, but a translation of the same in the English language is to be published.
- ü An aggrieved person who belongs to the linguistic minorities has the right to submit a representation in any language used in the Union or states for the redress of grievances to any authority under the central or state government.
- ü Every state should provide adequate facilities for instruction in the mother tongue at the primary stage of education.
- ü The President should appoint a special officer for linguistic minorities to investigate all matters relating to the constitutional safeguards for linguistic minorities and to report to him.
- ü These reports are placed in front of the Parliament and sent to the concerned state governments.

HOW MANY LANGUAGES ARE PRESENT IN THE 8TH SCHEDULE?

- ü In the original constitution only 14 languages were mentioned.
- ü At present the number of languages mentioned in the 8th schedule is 22.

- ü Sindhi was the 15th language added through 21st amendment in the year 1971.

- ü **Konkani, Nepali and Manipuri** languages were added through the 71st amendment in the year 1992.
- ü The next 4 languages that added to the 8th schedule were **Bodo, Dogri, Maitihli and Santhali**.
- ü The last four languages were added through 100th amendment.

THE LIST OF THE LANGUAGES MENTIONED IN THE 8TH SCHEDULE.

- ü Assamese
- ü Bengali
- ü Bodo
- ü Dogri
- ü Gujarati
- ü Hindi
- ü Kannada
- ü Kashmiri
- ü Konkani
- ü Maithili
- ü Malayalam
- ü Manipuri
- ü Marathi
- ü Nepali
- ü Oriya
- ü Punjabi
- ü Sanskrit
- ü Santhali
- ü Sindhi
- ü Tamil
- ü Telugu
- ü Urdu

Miscellaneous:

In the year 2010 the Gujarat High Court observed that though the majority of the people in India have accepted Hindi as a national language there was nothing on record to suggest that any provision has been made or order issued declaring Hindi as a national language of the country.

ANTI DEFECTION LAW

PLEASE NOTE: The anti defection law is applicable only to the current (present) members of

Lok Sabha
Rajya Sabha
State Legislative Assemblies
State Legislative Councils

- ü Before the year 1985 there is no provision for disqualifying a member if he joins other political party.
- ü This is considered to be an insult to the democracy where the people have a voted for a person by looking at the party.
- ü This was seriously discussed hence the 10th schedule of the Indian Constitution.

- ü Defections mean jumping from one political party to the other after getting elected.
- ü The anti-defection law is meant for disqualification of members of Parliament or State Legislatures on the grounds of defections from one political party to the other.
- ü These provisions are added to the Constitution of India through the 52nd amendment.
- ü A new schedule in the form of 10th schedule has been added to the Constitution.
- ü The 10th schedule was added to the constitution in the year 1985 through 52nd amendment.
- ü In Parliament and State Legislatures there are three categories of members present.
- ü Political Party members
- ü Independent members (Most of the times these members are present)
- ü Nominated members
- ü All categories of members can be disqualified under the grounds of defections.

DISQUALIFICATION OF MEMBERS OF POLITICAL PARTIES:

- ü Note: A political party member is a person who contests in the election on the name of a political party and gets elected.
- ü A member of a political party can be disqualified
- ü If that member after getting elected voluntarily resigns to the political party on whose ticket he/she got elected to the house

OR

- ü if the member votes against to the **whip** (Direction) issued by the concerned political party

OR

- ü If the member abstains against the direction issued by the concerned political party without permission from the party.

EXCEPTIONS:

- ü A member going out of a party through **Split** is **not** disqualified on the grounds of defections.

WHAT IS SPLIT?

- ü If minimum **1/3rd** members of a political party gets separated from the parent party and forms a new party it is called Split.

- ü The speaker or the chairman if satisfied recognizes the split group as a new party.
- ü **Note:** The Split group **cannot join** any political party. If so, the group is disqualified.
- ü **Please Note:** The Split by 1/3rd members of a party have been deleted through the 91st amendment Act of 2003. This means the members can no more take shelter under the split.

WHAT IS MERGER?

- ü If a 2/3rd of a political party forms a separate group and joining another political party is called merger.

- ü If a member goes out as a result of **merger**, the member is **not** disqualified.
- ü If a member after being elected as the Presiding officer of the house, voluntarily gives up the membership of the party and rejoins it after he ceases to hold that office.
- ü A member may be suspended by the political party for violating the discipline of the party. A suspended member from a political party is not disqualified from the membership of the house.

INDEPENDENT MEMBERS:

WHO IS AN INDEPENDENT MEMBER?

ü An independent member is **an elected member** of the house who does not belong to any political party. She/he got elected because of their personal image among the people of the respective constituency.

- ü If an independent member joins any political party then the member is disqualified from the membership of the house.
- ü Note: An independent member can continue as an associated member of a political party.

NOMINATED MEMBERS:

- ü These are the members who are nominated by the President for Parliament and by the Governors for the State Legislatures.

DO YOU REMEMBER?

The President nominates **2 members** who belong to the Anglo-Indian community to the Lok Sabha.

The President nominates **12 members** with special knowledge or practice experience to the Rajya Sabha.

The Governor nominates **1 member** of who belongs to Anglo-Indian to the state Assembly.

The Governor nominates **1/6th** of the total members to the State Legislative Council.

- ü A nominated member is disqualified for being a member of a house if the member joins any political party after the expiry of 6 months from the date on which he takes his seat in the house.

EXCEPTION FOR A NOMINATED MEMBER:

- ü If a nominated member joins a political party within 6 months of his nomination to the house is not disqualified.

WHO IS THE DECIDING AUTHORITY REGARDING THE DISQUALIFICATION OF A MEMBER:

- ü The deciding authority is the Presiding officer (Speaker/chairman).
- ü Initially the decision of the chair was not subjected to the judicial review.

- ü In the year **1993, in Kihoto Hollohan V. Zachilhu** case the Supreme Court declared that this provision is unconstitutional on the ground that it seeks to take away the jurisdiction of Supreme Court and High Courts.
- ü Hence since 1993, the decision chair is subject to the judicial review.
- ü It means the disqualification of a member can be challenged in a court of law on the grounds of malafides.

Miscellaneous:

- ü The Presiding officer can take up a defection case only when he/she receives a complaint from a member of the house.
- ü The speaker need not take the decision immediately.
- ü Before taking the final decision the presiding officer must give a chance to the member against whom the complaint has been made.
- ü In the year 2007 in Uttar Pradesh 13 MLA's (BSP) were disqualified under Anti-defection law.
- ü In the year 2010 then Karnataka Assembly Speaker K G Bopaiah 11 BJP and 5 independent MLAs. Then the MLAs moved the Karnataka High Court and the court upheld the decision of the Speaker. Later the disqualified MLAs moved the Supreme Court and the Apex Court ordered for the reinstating of the MLAs and thus avoided the possible by elections in Karnataka.
- ü In the year 2013 in Andhra Pradesh Assembly 15 MLAs have been disqualified for defying their respective party whips.